



Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

Meeting Notice regarding objections/suggestions of in-principle approval of revised building plan of Group Housing Colony measuring 11.5878 acres in Sector-99A, Gurugram bearing license no. 37 of 2013 dated 03.06.2013 being developed by Hasta Infrastructure Pvt. Ltd.

Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

18 June 2026 at 09:50

To: STP Gurugram <stp4.gurugram.tcp@gmail.com>, Ats Pratik Verma Hk <prateek.verma@homekraft.in>, "email@atsgreens.com" <email@atsgreens.com>, "getamber@atsgreen.com" <getamber@atsgreen.com>, "getamberanand@atsgreen.com" <getamberanand@atsgreen.com>, tcpharyana7@gmail.com, rera@hareraggm.gov.in, "udaivir.anand@atsgreen.com" <udaivir.anand@atsgreen.com>, Getamber Anand <getamber@atsgreens.com>, Grand Stand Customercare <grandstand.customercare@homekraft.in>, Rajeev Gupta <rajeev.gupta@homekraft.in>, Rahul Mangla <rahul.mangla@homekraft.in>
Cc: "soibal.gupta@outlook.com" <soibal.gupta@outlook.com>

Polite note to DTCP (Department of Town and Country Planning, Haryana) — or competent authority

To,

The Director / Senior Town Planner (STP) / Competent Authority

Department of Town and Country Planning (DTCP), Haryana

(and STP Gurugram, as applicable) - Email: stp4.gurugram.tcp@gmail.com

CC:

1. The Chief Minister's Office (CMO), Government of Haryana, Chandigarh - Email: cmharyana@nic.in
2. The Secretary / Competent Authority, Haryana Real Estate Regulatory Authority (HARERA), Regional Office, Gurugram - Email: rera@hareraggm.gov.in
3. The Secretary / Competent Authority, HARERA, State Headquarters, Panchkula - Email: hrera-hry@gov.in
4. The Director, Department of Town & Country Planning (DTCP), Haryana, Chandigarh - Email: tcpharyana7@gmail.com
5. The Deputy Commissioner, Gurugram - Email: dcgrg@hry.nic.in
6. M/s ATS Realworth Pvt. Ltd. (existing promoter / respondent) - Email: email@atsgreens.com
7. M/s Hasta Infrastructure Pvt. Ltd. (present colonizer / ATS Group) - Email: udaivir.anand@atsgreen.com
8. M/s Homekraft Infra Pvt. Ltd. (proposed developer) - Email: grandstand.customercare@homekraft.in
9. The Authorised Signatory, ATS - ATS Tower, Plot No. 16, Sector-135, Noida; and Project Site Office, ATS Grandstand, Sector 99A, Gurugram - Email: getamber@atsgreen.com

From,

Prof. Vijyant Agarwal

ATS Grandstand Phase-I, Sector 99A, Gurugram

HARERA (Haryana Real Estate Regulatory Authority) order dated 18.04.2024 applies to Unit No. 3051

Subject: Mandatory safeguards before final Change of Developer (COD) approval — **intra-group restructuring** (ATS Realworth / Hasta / Homekraft), not arm's-length takeover

श्रीमान,

With due respect, the undersigned allottee places this consolidated list before your good office for kind consideration in connection with the proposed change of developer.

It is respectfully submitted that the proposed Change of Developer (COD) is a **100% intra-group restructuring** within the ATS group — a paper transfer among related entities under common control, and **not** a genuine third-party takeover. In such a situation, your good office may kindly ensure that the **existing allottee** of Unit No. **3051** is **not prejudiced** by inter-company reshuffling, selective liability dumping, or undertakings that exist only on paper.

The items listed below are, in the allottee's respectful view, **mandatory requirements** to safeguard the allottee's rights, particularly where:

- the Buyer–Builder Agreement (BBA) is with **ATS Realworth** and the **HARERA order dated 18.04.2024** (rectified **08.08.2024**) applies to Unit No. **3051**;
- **pre-EMI** (pre-Equated Monthly Installment interest) remains the builder's obligation **directly to PNB (Punjab National Bank) Housing Finance** till lawful possession;
- ATS's COD papers propose **Hasta** → **Homekraft** as DTCP colonizer change, while describing Homekraft as the “**new Developer**” — yet **do not** confirm whether **ATS Realworth** remains RERA-registered promoter; and
- the proposed developer change is among **related entities** within the ATS group and must be fully disclosed and safeguarded on the COD file.

It is respectfully requested that **before any final COD permission**, your good office may kindly ensure — through conditions, verified filings, and record — that the **ATS group** has placed on record the documents, undertakings, and liability assumptions set out below, so that allottee protection is **built into the file** and not left to post-facto dispute.

Substantive commitments must come **from ATS Realworth, Hasta Infrastructure Pvt. Ltd., and Homekraft** in writing.

This list is submitted in a spirit of **cooperation** with your good office, so that regulatory approval — if granted — may duly safeguard the allottee's rights under the BBA and on the COD record.

It is further submitted that, as the allottee, the undersigned has had barely two days and (both days he was engaged in his official work) to prepare this consolidated list (without the benefit of a full weekend). The document has been prepared personally by the allottee, without legal vetting by counsel, and therefore further refinements remain possible. In this spirit, it is respectfully requested that your good office may kindly allow one further week before treating this submission as the final draft for record and consideration.

Thanking you,

Place: New Delhi

Date: 17.06.2026

(Prof. Vijyant Agarwal)

Allottee - Unit 3051, Tower No. 03

House No. 7, Type 5 (NSUT, Govt. of NCT of Delhi)

Sector 3, Dwarka, N. Delhi-110078

Mob.No. 9899308574

Master Consolidated Issues List - Change of Developer (COD), Revised Plan and Allottee Safeguards

Pre-EMI: *Pre-EMI = pre-Equated Monthly Installment interest on home loan.* COD does **not** automatically end subvention. The builder must still pay pre-EMI **directly to PNB (Punjab National Bank) Housing Finance** until lawful possession (HARERA order **18.04.2024**; ATS letter **23.10.2018**).

Purpose: Working reference for cooperative requests to DTCP (certified copies, file verification, undertakings on record) — and for the allottee's own follow-up. Scope: Unit 3051 only — including Condition 12 individual notice to the undersigned. Abbreviations used in this list are kindly explained in Table 1 below. Update as issues are pursued or resolved.

Key terms — abbreviations and full forms

Table 1 — Key terms — abbreviations and full forms

Abbrev.	Full form	Plain meaning in this matter
ATS	(group name)	ATS group of companies — Realworth, Hasta, Homekraft, and affiliates
BBA	Buyer–Builder Agreement	Allottee's contract dated 25.10.2018 with ATS Realworth
CC	Completion Certificate	Certificate that construction is complete as per approved plan
CIN	Corporate Identification Number	Unique company ID issued by Ministry of Corporate Affairs (MCA)
COD	Change of Developer	DTCP permission to transfer project licence from one colonizer to another
CRM	Customer Relationship Management	Customer-care / complaint-handling system (e.g. @ homekraft.in emails)
DIN	Director Identification Number	Unique ID for company directors (MCA record)
DTCP	Department of Town and Country Planning	Haryana government department regulating colonizer licences and building plans
EDC	External Development Charges	Charges payable to authority for external infrastructure (roads, drains, etc.)
ECS	Equivalent Car Space	Parking space entitlement in building plan
EMI	Equated Monthly Installment	Regular loan repayment to bank
FAR	Floor Area Ratio	Ratio of built-up area to plot area — affects density of construction
GMDA	Gurugram Metropolitan Development Authority	Authority for roads and infrastructure in Gurugram

GST	Goods and Services Tax	Indirect tax on goods and services
HARERA / HRERA	Haryana Real Estate Regulatory Authority	State RERA authority for Gurugram — passed order 18.04.2024 in Complaint 4463/2021
HOD	Head of Department	Senior official whose consent Homekraft disclaimer may refer to
IDC	Internal Development Charges	Charges for internal project infrastructure within the colony
LC-IV	Licence Category IV	DTCP colonizer licence category under Haryana rules
MCA	Ministry of Corporate Affairs	Central government ministry — company registration, CIN, directors
NBC	National Building Code of India	Technical standard for structural safety, fire, and building services
NOC	No Objection Certificate	Written clearance from a regulatory authority
OC	Occupancy Certificate	Certificate permitting occupation of built premises
PNB	Punjab National Bank	Lender — PNB Housing Finance holds allottee's home loan
POA	Power of Attorney	Written authority for a person to act/sign for a company
Pre-EMI	Pre-Equated Monthly Installment (interest)	Interest on home loan paid by builder to bank until possession — not allottee's cheque to builder
RERA	Real Estate (Regulation and Development) Act, 2016	Central law and state authority regulating real estate projects and promoters
SPV	Special Purpose Vehicle	Thin company set up only to hold one project — may lack independent funds
STP	Senior Town Planner	DTCP officer who hears plan objections (e.g. Gurugram STP)
TOD	Transfer of Development Rights	DTCP policy on development rights transfer (policy 09.02.2016)
Colonizer	<i>(role, not abbrev.)</i>	Company holding the DTCP project licence (now Hasta ; proposed Homekraft)
Promoter	<i>(role, not abbrev.)</i>	Company registered under RERA/HRERA as project developer (BBA party: Realworth)
Intra-group restructuring	<i>(phrase)</i>	Transfer between related ATS companies — not a sale to an outside buyer
Lawful possession	<i>(phrase)</i>	Physical handover only after OC/CC , lift, utilities, fire safety, and essential services are ready
Novation	<i>(legal term)</i>	Replacing the BBA party with a new company without allottee consent — not permitted without consent

§11(4) RERA	Section 11(4), RERA Act 2016	Promoter's contractual obligations under BBA continue even if colonizer/licence changes
§11(4)(a) RERA	Section 11(4)(a), RERA Act 2016	Promoter cannot be relieved of BBA obligations without allottee consent
§4(2)(l) RERA	Section 4(2)(l), RERA Act 2016	Project escrow account — 70% of allottee payments to be deposited and used only for construction
§14 RERA	Section 14, RERA Act 2016	Allottee's written consent required before major plan/specification alteration
§15 RERA	Section 15, RERA Act 2016	Defect liability of promoter for structural/defect issues
§18 RERA	Section 18, RERA Act 2016	Promoter must complete and deliver possession per sanctioned plan and BBA timeline
§19 RERA	Section 19, RERA Act 2016	Allottee's right to information on construction progress and accounts
§39 RERA	Section 39, RERA Act 2016	Rectification of HARERA order — allowed 08.08.2024
§40 RERA	Section 40, RERA Act 2016	Penalties for promoter non-compliance
§71 RERA	Section 71, RERA Act 2016	Delay compensation for failure to give possession on time

Technical framework — three separate tracks

This matter involves three tracks that ATS has mixed together. They must be kept distinct on the DTCP file (please see Table 2):

Table 2 — Three separate tracks

Track	Legal capacity	What changes in COD
A. Colonizer / licence	Colonizer under Licence No. 37/2013	Hasta → Homekraft (proposed)
B. Promoter / allottee contract	RERA-registered promoter + BBA party	ATS says “existing and proposed promoter” — unstated
C. Building plan	Sanctioned layout, FAR, towers, units	Revised plan ZP-938-II dated 04.05.2026 — separate from COD

Technical point: Change of **DTCP colonizer** does **not** automatically change **RERA promoter** or **BBA counterparty**. Unless lawfully amended, **ATS Realworth** remains BBA party and HARERA respondent; **Section 11(4), RERA Act 2016** continues promoter duties.

HARERA order 18.04.2024 — binding technical directions (Unit 3051)

Table 3 — HARERA order 18.04.2024 — binding technical directions (Unit 3051)

No.	Direction	Technical content	Compliance status to verify
3.1	Pre-EMI	Pay pre-EMI/EMI directly to PNB Housing Finance till offer of possession (letter 23.10.2018 ; BBA Clause 7.1)	Outstanding — Homekraft email 12.06.2026
3.2	CC/OC disclosure	Disclose completion/occupation certificate status	30-day period expired (~ 18.05.2024)
3.3	Possession date	Disclose date of physical possession of Unit 3051	30-day period expired; ATS projects 30.06.2031
3.4	Escrow	Disclose project escrow account — credits, debits, utilisation	30-day period expired
3.5	Full compliance	Complete all directions	90-day period expired (~ 17.07.2024)
3.6	Planning branch, DTCP (Direction IV)	HARERA order 18.04.2024, Direction IV: directs DTCP planning branch to check project status and initiate penal proceedings for RERA Act 2016 violations	Status unknown - DTCP planning branch action not verified

Technical safeguard: Any DTCP approval (COD, revised plan, registration amendment) should be conditional on these directions remaining enforceable for Unit 3051 — not waived by generic affidavit dated 08.06.2026.

Recommended approval sequencing (technical)

To avoid regulatory benefit without compliance, the allottee respectfully suggests this order on the DTCP file:

1. HARERA order execution for Unit 3051 — documentary proof, not undertakings alone (please see Table 13; kindly see §6B)
2. Condition 12 individual notice to me (Unit 3051) — email, postal, website — with verified delivery and a fresh objection window (kindly see §4.27, §8.5–8.7)
3. HRERA registration amendment (if any) — promoter role stated (kindly see §4.15, §1A.24)
4. Final DTCP COD order — with joint liability and intra-group disclosure on record
5. Revised plan track (ZP-938-II) — heard separately from COD (kindly see §12.3)

Technical point: Public COD notice dated 17.12.2025 is not a substitute for Condition 12 individual notice to me (please see Table 4, Condition 12) — my notice record must be verified on the DTCP file.

DTCP in-principle COD (10.12.2025) — Conditions 1–12 (reference)

Table 4 — DTCP in-principle COD (10.12.2025) — Conditions 1–12

Condition	Technical subject
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1	Fresh LC-IV agreement, bilateral agreement, bank guarantees (internal + external development)
2	Undertaking to abide by Act/Rules
3	Administrative charges ~Rs. 1,00,03,672 - DTCP Condition 3 (in-principle COD 10.12.2025): colonizer (Hasta/Homekraft) must deposit balance 60% of 25% administrative charges to DTCP before final COD; DTCP statutory fee, not allottee payment, pre-EMI, or HARERA relief - separate from EDC/IDC (Condition 5); verify deposit proof on DTCP file (sec. 4.9)
4	Registered collaboration agreement
5	EDC/IDC clearance
6	Colonizer undertaking
7	Future EDC liability undertaking
8	Liability undertaking (all group entities)
9	Board resolutions
10	Paid-up capital Rs. 8 crore - DTCP Condition 10 (in-principle COD 10.12.2025): incoming colonizer (Homekraft) must enhance paid-up capital to Rs. 8 crore per DTCP order 14.01.2025 before final COD; financial-eligibility condition, not allottee payment - shows colonizer can bear licence obligations; verify proof on DTCP file (kindly see sec. 4.14, sec. 1A.7)
11	Third-party rights / HRERA registration amendment
12	Individual notice to me (Unit 3051) - email + postal + website

PART I — CORPORATE IDENTITY, GROUP STRUCTURE & COD (CHANGE OF DEVELOPER) TRANSACTION

1. Entity identification and roles

Note: ATS uses **three different companies** for three different roles. These must be stated clearly on the COD file so Unit 3051 rights are not split across entities:

1. DTCP colonizer (licence holder): Hasta today → proposed transfer to Homekraft

2. RERA promoter / BBA party / HARERA respondent: ATS Realworth (Complaint 4463/2021)

3. Operational “new developer” (ATS’s words): Homekraft (joint affidavit 08.06.2026; customer care @homekraft.in)

ATS has not confirmed whether Realworth remains a RERA promoter after COD. Its reply speaks of “existing and proposed developer/promoter.” DTCP may kindly verify the role chart on file for Unit 3051.

Table 5 — §1 Entity identification and roles — requirements

No.	What is required
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1.1	Provide certified MCA (Ministry of Corporate Affairs) extract showing the exact registered legal name of the proposed new colonizer — papers disagree (<i>Homekraft Infra Pvt. Ltd. vs Homekraft Infrastructure Private Limited</i>)
1.2	Provide CIN (Corporate Identification Number) , date of incorporation, registered office, and latest MCA master data for ATS Realworth , Hasta , and Homekraft
1.3	Provide director list for all three companies, clearly marking common directors and group relationship
1.4	Provide group organogram showing ATS Greens , sister concerns, affiliates, and who controls whom
1.5	Provide a written role chart for Unit 3051 — before and after COD — naming who is: DTCP colonizer, RERA promoter, BBA party, construction contractor, payment obligor (pre-EMI etc.), and HARERA respondent
1.6	Place on DTCP file a clear statement: who is RERA-registered promoter today (expected: ATS Realworth per BBA and HARERA order) and who will be promoter after COD
1.7	Explain in writing what happens to Unit 3051 when the BBA is with Realworth , the DTCP licence is with Hasta , and COD names Homekraft as new colonizer
1.8	Confirm whether Realworth and Homekraft share the same registered office (711/92, Deepali, Nehru Place) and what that means for service of notices and liability
1.9	Confirm in writing that COD is a 100% intra-group transfer among Realworth, Hasta, and Homekraft — not a sale to an independent third party
1.10	Verify on DTCP file whether ATS Realworth stays RERA promoter after COD, or HRERA registration moves to Homekraft — ATS affidavit calls Homekraft “ new Developer ” but does not say Realworth continues as promoter
1.11	Provide certified copy of ATS's COD filing from the DTCP file and confirm it shows Hasta → Homekraft colonizer change with related-party / intra-group disclosure
1.12	Disclose who economically owns and controls the project after COD — showing ATS group control continues
1.13	Confirm ATS Realworth is not shown as the transferring colonizer in the COD application — only Hasta → Homekraft is proposed
1.14	Provide HRERA project registration extract — registration number, registered promoter name, project status, and whether COD triggers amendment under Condition 11 (<i>see §2.11</i>)

1A. Intra-group restructuring — precautionary issues

Table 6 — §1A Intra-group restructuring — precautionary issues

No.	What is required
1A.1	Request DTCP condition: Unit 3051 liabilities must not be pushed only onto Homekraft while ATS Realworth (BBA / HARERA party) is treated as freed from promoter duties
1A.2	Disclose all common directors and managers across the three companies and explain how conflict of interest is addressed in undertakings to the allottee and on the DTCP file

1A.3	Provide related-party disclosure: terms of inter-company transfer, price paid, and independent valuation
1A.4	Disclose whether Hasta paid Homekraft nothing or only a nominal amount for taking over the project
1A.5	Audit and disclose whether any project money, escrow, or receivables were moved out of the project before COD
1A.6	Provide statement of inter-company loans or book adjustments that reduced money available to complete Unit 3051
1A.7	Prove Homekraft can pay its obligations on its own — balance sheet, paid-up capital, net worth — not only by relying on a thin SPV (Special Purpose Vehicle)
1A.8	Provide a real guarantee from ATS parent/holding company — guarantees that only go in a circle within the group are not enough
1A.9	Confirm in writing that Realworth, Hasta, and Homekraft stay jointly and severally liable to Unit 3051, and record this on the DTCP file — group reshuffle must not reduce allottee protection or defeat HARERA order duties
1A.10	Confirm COD does not restart the limitation period, reset compliance deadlines, or allow a “new company” defence against the allottee
1A.11	Provide proof the project stays under ATS group control after COD — e.g. ATS Grandstand branding/website, ATS Tower Noida address in notices, shared email (grandstand.customercare@homekraft.in), and list of common signatories across ATS / Hasta / Homekraft
1A.12	Produce emails/letters showing Mr. Getamber Anand, CMD directed the COD process
1A.13	Explain in writing whether Homekraft’s “ subject to HOD (Head of Department) consent ” disclaimer limits the group’s duty on pre-EMI, possession, and BBA obligations
1A.14	Provide certified DTCP copy of ATS filing and confirm related-party disclosure is complete
1A.15	Record on DTCP/STP file that COD is intra-group only (Hasta → Homekraft , Realworth remains BBA/HARERA party) — not an arm’s-length sale to an outside developer
1A.16	Confirm Section 14, RERA Act 2016 (plan/specification alteration) and BBA consent cannot be bypassed by internal company transfer
1A.17	Provide signed DTCP order (when passed) and verify economic-interest and related-party facts are correctly recorded
1A.18	Request DTCP undertaking: no further intra-group asset transfers without prior notice to and written consent of the undersigned (Unit 3051)
1A.19	Commission forensic audit of inter-company payments, escrow movements, and fund flows before COD
1A.20	Provide binding parent/holding company guarantee (ATS group) for all Homekraft duties to Unit 3051
1A.21	Give undertaking on DTCP file: allottee may enforce against the whole ATS group if restructuring harms Unit 3051
1A.22	Confirm in writing no discharge, novation, or settlement of allottee claims without written allottee consent

1A.23	File allottee's representation in STP/DTCP hearing and provide signed minutes/order
1A.24	Provide draft HRERA (Haryana Real Estate Regulatory Authority) registration amendment (DTCP Condition 11) and state clearly: promoter stays Realworth or changes to Homekraft — with signatures of all existing developers
1A.25	Request DTCP record: if default continues after restructuring, penalties may apply to all group entities

2. Asset transfer

Table 7 — §2 Asset transfer — requirements

No.	What is required
2.1	Provide certified list of all assets transferred from Hasta to Homekraft under COD
2.2	Provide documents showing transfer of land / development rights
2.3	Provide list and valuation of work-in-progress, materials, and equipment transferred
2.4	Provide list and copies of project records handed over — drawings, approvals, correspondence
2.5	Disclose transfer of Unit 3051 ledger, receivables, and outstanding demands
2.6	Disclose transfer of escrow / project bank account — account numbers, balances, who can sign
2.7	Confirm Unit 3051 customer file and data transferred to Homekraft with signed handover receipt
2.8	List all approvals transferred or needing renewal (DTCP , HRERA , fire, environment, GMDA , electrical load, water/sewer)
2.9	Disclose any project assets deliberately kept out of the COD transfer
2.10	Provide valuation report and price paid (if any) for assets transferred in COD
2.11	Provide certified copy of HRERA project registration and all amendments proposed with COD — placed on DTCP file (see §1.14, §4.15)

3. Liability transfer and assumption

Table 8 — §3 Liability transfer and assumption — requirements

No.	What is required
3.1	Provide certified list of all liabilities Homekraft accepts as new DTCP colonizer
3.2	Confirm in writing Homekraft accepts project duties for Unit 3051 — but the BBA stays with ATS Realworth unless the allottee agrees to change it
3.3	Confirm in writing Homekraft accepts all duties under HARERA order 18.04.2024 for Unit 3051
3.4	Confirm in writing Homekraft accepts pre-EMI/EMI and subvention duties to PNB till lawful possession
3.5	Confirm in writing Homekraft accepts delay compensation / Section 71 liability — allottee need not waive claims
3.6	Confirm in writing Homekraft accepts Section 15 defect liability for Unit 3051

3.7	Disclose and accept all outstanding EDC/IDC (External / Internal Development Charges)
3.8	Confirm in writing Homekraft accepts litigation and decree risk from Complaint 4463/2021 for Unit 3051
3.9	Confirm Homekraft accepts Section 40 penalties if applicable
3.10	State in writing whether ATS Realworth is released or remains jointly liable with Hasta and Homekraft
3.11	Confirm internal deals between group companies cannot harm allottee rights — record on COD file
3.12	Confirm in writing BBA dated 25.10.2018 remains with ATS Realworth — explain effect if Homekraft becomes colonizer
3.13	Provide registered indemnity bond / corporate guarantee from ATS parent group
3.14	Provide written refund plan if Homekraft fails COD obligations
3.15	Confirm in writing ATS Realworth is not released from HARERA order / Section 11(4) (a) as BBA party — Hasta → Homekraft COD does not discharge Realworth
3.16	Give express undertaking: intra-group transfer does not reduce, delay, or split allottee rights
3.17	Provide liability assumption deed signed by all three companies — not Homekraft alone
3.18	Insert cross-default clause: default by any group company allows action against all
3.19	Confirm in writing HARERA order duties in Complaint 4463/2021 bind the whole ATS group after COD
3.20	Confirm in writing PNB pre-EMI cannot be shifted to the allottee because of intra-group COD
3.21	Provide written confirmation: COD does not end subvention; arguments like “scheme closed,” “new developer,” or “fresh arrangement” do not make pre-EMI the allottee’s duty
3.22	Confirm in writing Homekraft as colonizer does not cancel Realworth’s pre-EMI promise (BBA Clause 7.1; letter 23.10.2018)
3.23	Confirm in writing Hasta → Homekraft change is not a new payment deal — HARERA order 18.04.2024 binds Realworth and Homekraft together
3.24	Confirm in writing delay compensation and Section 71 claims survive COD without allottee waiver
3.25	Confirm Section 11(4), RERA Act 2016 — no assignment/transfer of BBA or allottee agreement without written allottee consent

4. COD terms, agreements and DTCP conditions

Table 9 — §4 COD terms, agreements and DTCP conditions — requirements

No.	What is required
4.1	Provide certified copy of full COD terms as filed by ATS with DTCP
4.2	Provide complete COD application pack filed 05.09 / 12.09 / 09.10.2025
4.3	Provide registered Collaboration Agreement (DTCP Condition 4) — certified DTCP copy

4.4	Provide fresh Agreement LC-IV (Licence Category IV) (DTCP Condition 1) — certified DTCP copy
4.5	Provide Bilateral Agreement (DTCP Condition 1) — certified DTCP copy
4.6	Provide bank guarantees for internal development (Condition 1) — from DTCP file
4.7	Provide bank guarantees for external development charges (Condition 1) — from DTCP file
4.8	Provide undertaking to abide by Act/Rules (Condition 2) — certified DTCP copy
4.9	Provide proof of administrative charges deposit ~₹1,00,03,672 (Condition 3)
4.10	Provide proof of EDC/IDC (External / Internal Development Charges) clearance (Condition 5)
4.11	Provide Condition 6 undertaking — certified DTCP copy
4.12	Provide future EDC liability undertaking (Condition 7) — certified DTCP copy
4.13	Provide Condition 8 liability undertaking — confirm Realworth, Hasta, and Homekraft are all named
4.14	Provide proof of paid-up capital raised to ₹8 crore (Condition 10)
4.15	Provide Condition 11 third-party rights / HRERA affidavit — confirm roles (Realworth promoter, Hasta outgoing, Homekraft incoming), proposed HRERA amendment, and all developers' signatures
4.16	Provide condition-wise compliance chart filed by ATS — certified DTCP copy
4.17	Provide certified DTCP order showing whether in-principle COD (10.12.2025) is still valid or has lapsed
4.18	Verify COD filing meets DTCP policies 18.02.2015 and 25.01.2021
4.19	Verify TOD (Transfer of Development Rights) policy 09.02.2016 continuity — certified DTCP copy
4.20	Provide landowner identity as disclosed in COD filing
4.21	Provide landowner consent to COD as filed
4.22	Provide encumbrance disclosure as filed
4.23	Provide commercial terms in COD filing — extra charges, timelines, specification changes
4.24	Verify paid-up capital proof filed by ATS and separate parent company guarantee from ATS group
4.25	Request DTCP hear the undersigned (Unit 3051) before final COD while intra-group transfer is under review
4.26	Provide certified final DTCP order/memo and confirm Unit 3051 safeguard conditions are on record
4.27	Verify DTCP Condition 12 compliance for Unit 3051 — individual email + postal + website notice with delivery proof and objection window

PART II — CORPORATE AUTHORITY, AFFIDAVITS & DOCUMENTATION

5. Board resolutions, POA (Power of Attorney) and deponent authority

Table 10 — §5 Board resolutions, POA and deponent authority — requirements

No.	What is required
5.1	Provide certified Board Resolution of Hasta authorizing COD (Condition 9)
5.2	Provide certified Board Resolution of Homekraft accepting COD and liabilities
5.3	Provide certified Board Resolution of ATS Realworth authorizing affidavits/undertakings
5.4	Provide board resolution authorizing affidavit filing before DTCP
5.5	Provide certified POA (Power of Attorney) for COD process
5.6	Provide certified POA for plan revision filings
5.7	Disclose POA holder's name, powers, validity, and registration
5.8	Require separate affidavit from each company (Realworth, Hasta, Homekraft) — not one joint affidavit dated 08.06.2026
5.9	Prove Shivam Wadhwa is authorized to swear affidavits for each company (appointment letter / board resolution)
5.10	Provide chart of directors with DIN (Director Identification Number) and signing authority for each entity
5.11	Explain in writing whether one person signing for all three companies can legally bind all three
5.12	Explain in writing what Homekraft's " subject to HOD (Head of Department) consent " wording means for binding duties to the allottee

6. Impugned joint affidavit dated 08.06.2026

Table 11 — §6 Impugned joint affidavit dated 08.06.2026 — requirements

No.	What is required
6.1	Require a Unit 3051-specific compliance affidavit — the generic joint affidavit 08.06.2026 is not enough
6.2	Require affidavit to name complainant, Unit 3051, and Complaint 4463/2021
6.3	Note on DTCP file: affidavit 08.06.2026 calls Realworth " Judgment Debtor " and Homekraft " new Developer company " — reconcile this with HRERA promoter registration and the BBA
6.4	Remove clause " subject to finality in pending appeal, if any " from any undertaking ATS relies on
6.5	Require clear undertaking: builder pays pre-EMI directly to PNB Housing Finance
6.6	Require full escrow disclosure in affidavit — account number, bank, balance, use of funds
6.7	Require construction status with photos, certificates, and tower-wise progress
6.8	Require a fixed possession date for Unit 3051 and rejection of the 30.06.2031 projection (<i>see §6A</i>)
6.9	Require note on revised plan impact on Unit 3051, Tower 03
6.10	Require annexures: bank proof, ledger, plans, board resolutions with affidavit
6.11	Require corrected affidavit — fix broken numbering and drafting errors

6.12	Require proof affidavit was served on the undersigned (Unit 3051) before authority relies on it
6.13	Clarify whether DTCP relied on affidavit 08.06.2026 while Unit 3051 compliance is still pending
6.14	Prepare compliance matrix mapping each HARERA order 18.04.2024 direction to affidavit 08.06.2026 response — kindly see Table 13 as template
6.15	Require affidavit to state HARERA order is presently executable unless specific stay order is produced — not “subject to finality of appeal” (<i>see Table 13, §6.4</i>)

6A. Possession date — affidavit gap and 30.06.2031 projection

Background: HARERA order **18.04.2024** (rectified **08.08.2024**) directed ATS to give the **possession date** for Unit 3051. The BBA and HARERA due date is **30.06.2023**. In **May 2026**, ATS projected Phase-I possession by **30.06.2031** — an **8-year** extension. The joint affidavit **08.06.2026** does **not** fix a date for Unit 3051 or explain the **2031** date. Without a clear date on file, delay compensation, Section 71 claims, and pre-EMI duties stay unsettled.

Table 12 — §6A Possession date — affidavit gap and 30.06.2031 projection — requirements

No.	What is required
6A.1	Require compliance with HARERA direction to state possession date — affidavit 08.06.2026 fails this for Unit 3051
6A.2	Record on DTCP file BBA/HARERA due date 30.06.2023 — delay has already occurred
6A.3	Explain in writing ATS’s 30.06.2031 projection (May 2026 reply): effect on Unit 3051 and whether ATS treats it as binding
6A.4	Require a binding possession date for Unit 3051, Tower 03 — not a generic Phase-I timeline
6A.5	Require affidavit to admit original due date 30.06.2023
6A.6	Require affidavit to explain delay from 30.06.2023 to today with milestone chart
6A.7	Require quarterly completion schedule for Tower 03
6A.8	Request DTCP note: 30.06.2031 conflicts with 30.06.2023 unless lawfully changed with allottee consent
6A.9	Give undertaking: delay, Section 71 compensation, and pre-EMI claims are preserved — no open-ended deferral
6A.10	Define lawful possession as handover only after OC (Occupancy Certificate) / CC (Completion Certificate) , lift, utilities, fire safety, roads, parking, and common areas are ready
6A.11	Request DTCP condition: 30.06.2031 is not binding for Unit 3051 without lawful variation and full disclosure
6A.12	Record binding possession date for Unit 3051 on DTCP/COD file — not only in a generic filing
6A.13	Confirm paper possession, partial possession, or COD/plan approval does not end delay claim or pre-EMI duty

6B. HARERA order compliance matrix (technical reference)

Kindly see Table 13 to check whether any ATS/DTCP filing actually complies — not merely promises compliance:

Table 13 — §6B HARERA order compliance matrix

No.	HARERA direction	Evidence required from ATS	Gap in affidavit 08.06.2026
6B.1	Direct pre-EMI to PNB Housing Finance	Bank payment proof, NOC, mandate	Only vague “time-bound” wording
6B.2	CC/OC status disclosure	Copy of certificate or written “not issued”	Not addressed for Tower 03
6B.3	Possession date for Unit 3051	Fixed date + milestone chart	Not addressed; ATS projects 2031
6B.4	Escrow disclosure	Account no., statement, utilisation certs	Not addressed
6B.5	Planning branch, DTCP action	DTCP planning-branch reference or compliance note on DTCP file	Not addressed
6B.6	Section 71 delay	Admission of delay from 30.06.2023 ; compensation position	Not addressed; 2031 projection conflicts
6B.7	Identify Unit 3051 , Complaint 4463/2021	Named in affidavit body	Uses generic “decree holder” only
6B.8	No appeal finality reservation	Unconditional undertaking	Harmful clause retained

PART III — ALLOTTEE RECORDS, NOTICE & TAKEOVER ADMISSION**7. Unit 3051 ledger, payments and accounts****Table 14 — §7 Unit 3051 ledger, payments and accounts — requirements**

No.	What is required
7.1	Provide certified customer ledger / account statement for Unit 3051 from booking to date
7.2	State in writing whether Unit 3051 ledger will be moved or adjusted to Homekraft during COD
7.3	Provide month-wise pre-EMI/EMI (pre-Equated Monthly Installment / Equated Monthly Installment) statement — paid, outstanding, and how future payments will be made

7.4	Confirm in writing builder pays pre-EMI directly to PNB (Punjab National Bank) Housing Finance till possession (HARERA order 18.04.2024) — not via allottee cheques; provide PNB acknowledgment if available
7.5	Reply in writing to Homekraft email 12.06.2026 : pre-EMI is not paid through allottee's loan statement or cheques
7.6	Provide PNB sanction letter and loan statement — loan account number, subvention terms, trigger for EMI, and builder payment history

7A. COD and subvention / pre-EMI — precautionary issues

Background: COD (Hasta → Homekraft) does **not** by itself end the **subvention scheme** or the builder's **pre-EMI duty**. ATS may still argue otherwise. The rows below ask for **clear written confirmations** on record.

Table 15 — §7A COD and subvention / pre-EMI — precautionary issues

No.	What is required
7A.1	Provide written confirmation rejecting these ATS arguments: (i) “subvention scheme expired/closed,” (ii) “Homekraft is new colonizer — old promises don't apply,” (iii) pre-EMI is allottee's job, (iv) COD is a fresh payment deal — builder pre-EMI continues after COD
7A.2	Record on DTCP file: arguments in 7A.1 conflict with HARERA order 18.04.2024 (pre-EMI till possession)
7A.3	Record on DTCP file: arguments in 7A.1 conflict with ATS letter 23.10.2018 and BBA Clause 7.1
7A.4	Record on DTCP file: arguments in 7A.1 conflict with direction to pay directly to PNB — not via allottee cheques
7A.5	Provide signed confirmation from Realworth, Hasta, and Homekraft : COD does not change pre-EMI/subvention for Unit 3051; pre-EMI continues directly to PNB till lawful possession
7A.6	Request DTCP condition: COD approval does not replace HARERA pre-EMI directions
7A.7	Confirm in writing Homekraft's 12.06.2026 request for loan statement does not shift pre-EMI to allottee (<i>see</i> §7.5)
7A.8	Confirm in writing paper/partial possession or COD/plan approval does not stop pre-EMI, subvention, or delay claims (<i>see</i> §6A.13)

8. Unit 3051 - individual notice and objection record

Table 16 — §8 Unit 3051 - individual notice and objection record — requirements

No.	What is required
8.1	Provide my allottee record (Unit 3051 only) — contact, payments, notices received
8.2	Provide COD public notice 17.12.2025 with newspaper publication proof (background only - not a substitute for individual notice to me)
8.3	Explain legal effect of “ deemed no objection ” if no objection in 30 days — give DTCP/STP written position so far as it affects me (Unit 3051)

8.4	Confirm whether I filed COD objection to STP within 30 days of 17.12.2025 notice
8.5	Provide copy of individual email notice for COD sent to me (Unit 3051) (Condition 12)
8.6	Provide copy of postal/courier notice sent to me (Unit 3051) with delivery proof
8.7	Provide printout of department website posting of COD proposal (website leg of Condition 12 - verified for my notice record)
8.8	Provide certified copy of STP report on my COD objection (Unit 3051)
8.9	Compare generic COD notice template with notice actually sent to me (Unit 3051)
8.10	Provide exact notice sent to me (Unit 3051) — date, mode, full text (B5 annexure)
8.11	Obtain written confirmation from ATS: silence does not mean consent
8.12	Request fresh 30-day objection period starting only from actual supply of documents to Unit 3051

9. Takeover / handling admission by ATS group (Realworth, Hasta, Homekraft)

Table 17 — §9 Takeover / handling admission by ATS group — requirements

No.	What is required
9.1	Provide tripartite signed acknowledgment from Realworth (BBA/HARERA party — remains bound), Hasta (outgoing colonizer — joint liability continues), and Homekraft (incoming colonizer — accepts project duty) — confirming intra-group COD does not reduce Unit 3051 rights
9.2	Provide proof Unit 3051 file was handed over to Homekraft, including full records and liability chain
9.3	Appoint and disclose a nodal officer for Unit 3051 with written authority over all group entities — not Homekraft CRM (Customer Relationship Management) alone
9.4	Confirm in writing there will be no new BBA , no new payment plan , and no reset of consent for Unit 3051
9.5	Explain in writing ATS reply point 12 (“compliance subject to finality of orders”) and give Unit 3051–specific confirmation it does not delay duties

PART IV — ADJUDICATED ORDER SAFEGUARDS (DTCP FILE)

10. Core compliance safeguards for Unit 3051

Table 18 — §10 Core compliance safeguards for Unit 3051 — requirements

No.	What is required
10.1	Confirm on DTCP file HARERA order 18.04.2024 duties continue for Unit 3051 after COD
10.2	Confirm on DTCP file Section 39 rectification 08.08.2024 continues to apply to Unit 3051 after COD
10.3	Require disclosure of OC/CC (Occupancy / Completion Certificate) status, possession date, and escrow details for Unit 3051 / Tower 03

10.4	Require proof of full HARERA order compliance as a pre-condition before any further DTCP approval
10.5	Disclose status of Complaint 4463/2021 duties and confirm they survive intra-group COD
10.6	Clarify generic DTCP affidavit is not a substitute for Unit 3051–specific compliance
10.7	Require proof of actual performance — not promises alone
10.8	Place on DTCP file a detailed compliance note listing what is still outstanding for Unit 3051
10.9	Request DTCP record: Section 40 penalties remain available for continued default
10.10	Confirm DTCP planning branch action ordered in HARERA order 18.04.2024 (Direction IV) has been taken or is in progress - on DTCP file
10.11	Give undertaking: Section 71 delay compensation claim is not waived by COD
10.12	Record on DTCP file HARERA 30-day (~18.05.2024) and 90-day (~17.07.2024) compliance periods expired — COD/plan benefits are not substitute for execution
10.13	Request DTCP record: COD, revised plan, and registration amendment remain conditional on full HARERA order execution for Unit 3051

11. Joint liability on DTCP / COD file

Table 19 — §11 Joint liability on DTCP / COD file — requirements

No.	What is required
11.1	Confirm on DTCP file joint and several liability of Realworth (BBA/HARERA), Hasta (outgoing), and Homekraft (incoming) (<i>see §1A.9, §9.1</i>)
11.2	Confirm change of developer does not force allottee to restart case or lose limitation
11.3	Require all three entities to acknowledge Unit 3051 duties in COD undertakings
11.4	Clarify COD approval does not weaken duties just because liabilities moved between group companies
11.5	Disclose which group company holds project funds and escrow
11.6	Confirm ATS Realworth stays bound as BBA party and HARERA respondent — COD does not release Realworth (<i>see §9.1</i>)

PART V — REVISED BUILDING PLAN & TECHNICAL IMPACT

12. Plan approval and objection process (separate from COD track)

Table 20 — §12 Plan approval and objection process — requirements

No.	What is required
12.1	Provide certified copy of revised plan approval ZP-938-II dated 04.05.2026
12.2	Attend or file objections at Condition VII hearing of memo ZP-938-II (objections to revised plan) — STP hearing 18.06.2026 (email 15.06.2026)

12.3	Keep separate COD track (10.12.2025) and revised plan track (04.05.2026) in all filings
12.4	Provide full ZP-938-II memo and compliance papers — certified DTCP/STP copy
12.5	Correct ATS typo ZP-983-II to correct number ZP-938-II in all correspondence and on record
12.6	Provide certified DTCP/STP permission from official file — not ATS-prepared copy only
12.7	Provide earlier sanctioned plans — full tower/floor/unit drawings
12.8	Provide revised plans showing every change
12.9	Provide item-by-item comparison — old plan vs revised plan
12.10	Provide impact note for Tower 03 / Unit 3051
12.11	Disclose plan changes: FAR (Floor Area Ratio) , density, units 522→734 , parking 999→957 , green area reduction
12.12	Disclose Tower 03 change: G+29 → S1+S2+30 ; height 96.95 m → 101.05 m
12.13	Withhold Section 14, RERA Act 2016 consent for plan/specification changes until full technical disclosure
12.14	Use Section 19, RERA Act 2016 — demand construction progress, accounts, and stage-wise schedule
12.15	Prepare chart comparing BBA promises vs revised plan — item by item
12.16	Commission independent technical impact report — not ATS-prepared
12.17	Provide certified as-built vs as-sold drawings for Unit 3051
12.18	Provide measured carpet/balcony/utility areas — BBA vs revised plan
12.19	Confirm parking bay / ECS (Equivalent Car Space) under BBA vs revised plan
12.20	Assess effect of plan changes on club/community amenities for Unit 3051
12.22	Confirm in writing no extra charge for revised plan / FAR / COD / EDC (External Development Charges) / IDC (Internal Development Charges)
12.23	Claim compensation or rebate if plan changes prejudice Unit 3051
12.24	Clarify area discrepancy 11.5875 vs 11.5878 acres in notices
12.25	Demand complete plan upload on gurgaonsector99a.com
12.26	Clarify in writing who will complete GMDA (Gurugram Metropolitan Development Authority) approach road after COD and by when
12.29	Provide slab-wise construction status for Tower 03 with photographs and engineer certificate

PART VI — POSSESSION, DEFECT LIABILITY & COERCIVE PRACTICES

Table 21 — §13 Possession, defect liability and coercive practices — requirements

No.	What is required
13.1	Define and confirm lawful possession only after OC/CC (Occupancy / Completion Certificate) and essential services are ready

13.2	Refuse to sign forced waiver / satisfaction / defect-free declaration at possession
13.3	Reserve right to take possession under protest without giving up claims
13.4	Inspect flat before accepting possession — with engineer/architect if needed
13.5	Provide binding milestone schedule for Tower 03 / Unit 3051 completion
13.6	Require monthly progress reports with photos and third-party certificates
13.7	Identify which company bears Section 15, RERA Act 2016 defect liability after COD
13.8	Disclose current OC/CC (Occupancy / Completion Certificate) status for Tower 03 and Phase-I
13.9	Record actual date when physical possession of Unit 3051 is offered

PART VII — ESCROW, PROJECT FUNDING & FINANCIAL DISCLOSURE

Table 22 — §14 Escrow, project funding and financial disclosure — requirements

No.	What is required
14.1	Disclose escrow account number, bank, and branch
14.2	Provide escrow statement from opening to date
14.3	Provide CA / engineer / architect fund utilisation certificates
14.4	Provide completion funding plan — sources and timelines
14.5	Investigate and disclose any misuse or diversion of project funds
14.6	Disclose how escrow control changes on COD — before and after
14.7	Disclose all bank guarantees — amount, beneficiary, validity, bank
14.8	Provide written statement of no extra financial burden on allottee
14.9	Disclose pending EDC/IDC (External / Internal Development Charges) with payment schedule
14.10	Clarify GST (Goods and Services Tax) on any revised charges
14.11	Disclose stamp duty paid on collaboration agreement
14.12	Disclose RERA Section 4(2)(i) project escrow — separate from any operational account; confirm no diversion before COD
14.13	Provide latest HRERA quarterly progress / audit report on project registration

PART VIII — REGULATORY PROCESS, HEARINGS & SERVICE

Table 23 — §15 Regulatory process, hearings and service — requirements

No.	What is required
15.1	Request a speaking, reasoned order before any approval
15.2	Request DTCP consider my submissions on record before approval
15.3	Provide draft HRERA (Haryana Real Estate Regulatory Authority) registration amendment and explain effect on Unit 3051 — promoter stays Realworth or changes

	to Homekraft (<i>see §4.15, §1A.24</i>)
15.4	Confirm continuity of environmental / fire / other NOCs (No Objection Certificates) after COD
15.5	Verify authenticity of intimation/objection letters on DTCP/STP file

PART IX — ATS CONDUCT, ADMISSIONS & CLARIFICATIONS REQUIRED

Table 24 — §16 ATS conduct, admissions and clarifications — requirements

No.	What is required
16.1	Confirm in writing HARERA compliance is related to plan revision for Unit 3051 — not “unrelated” as ATS suggests
16.2	Answer objections on merits — not by offering consent/NOC instead of addressing issues
16.3	Supply documents to me (Unit 3051) — not inspection-only at Noida office
16.4	Confirm in writing that “COD will help completion” is not a time extension for Unit 3051
16.5	Note on DTCP file: giving documents does not by itself cure past non-compliance
16.6	Note on DTCP file: plan approval does not cancel BBA or HARERA rights for Unit 3051
16.7	Reply point-by-point to allottee’s 13-item rejoinder table
16.8	Explain whether rotating duties between Realworth / Hasta / Homekraft changes compliance owed to Unit 3051
16.9	Clarify my consent position while ATS denies COD is intra-group

On Mon, 15 Jun 2026 at 17:10, STP Gurugram <stp4.gurugram.tcp@gmail.com> wrote:

Dear All,

In principle approval for the subject matter was granted vide Directorate Memo no. ZP-938-II/SD(RD)/2026/15567 dated 04.05.2026 in compliance of which, the colonizer had published a public notice for inviting objections from existing allottees. Accordingly, as per the condition no. VII, of Directorate office Memo. no. ZP-938-II/SD(RD)/2026/15567 dated 04.05.2026, an opportunity of hearing is being granted to the colonizer and the objectors on **18.06.2026 at 03:00 PM in the office STP, Gurugram, 3rd Floor, HSVP Complex, Sector 14, Gurugram**. Therefore, it is requested to attend the hearing at the above-mentioned date, time & venue.

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With regards,
Senior Town Planner
Gurugram





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